

Central Supervisory Board (Transaction of Business) Regulations, 1999

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Central Supervisory Board (Transaction of Business) Regulations, 1999

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Central Supervisory Board (Transaction of Business) Regulations, 1999

Rule CENTRAL-SUPERVISORY-BOARD-TRANSACTION-OF-BUSINESS-REGULATIONS-1999 of 1999

Published on 8 February 1999

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Central Supervisory Board (Transaction of Business) Regulations, 1999

Published vide Notification No. G.S.R. 73(E), dated 8th February, 1999

Ministry of Health and Family Welfare

(Department of Family Welfare)

G.S.R. 73(E). - In exercise of the powers conferred by section 33 of the Pre-natal Diagnostic Techniques (Regulation and Prevention of Misuse) Act, 1994 (

57 of 1994

), the Central Supervisory Board, with the previous 'sanction of the Central Government, hereby makes the following regulations, namely :-

1.

Short title and commencement.

(1)

These regulations may be called the Central Supervisory Board (Transaction of Business) Regulations, 1999.

(2)

They shall come into force on the date of their publication in the official Gazette.

2.

Definition.

- In these regulations, unless the context otherwise requires,-

(a)

"Act" means the Pre-natal Diagnostic Techniques (Regulation and Prevention of Misuse) Act, 1994 (57 of 1994

);

(b)

"rules" means any rules framed under the Act;

(c)

"Board" means the Central Supervisory Board constituted under section 7 of the Act;

(d)

"meeting" means meeting of the Board;

(e)

"Member" means a member of the Board;

(f)

words and expression used herein and not defined in these regulations but defined in the act or rules shall have the same meanings so assigned to them in the Act or rules.

3.

Procedure for transaction of business in meetings.

(1)

The business of the Board shall ordinarily be transacted at a meeting so called as not to allow a gap of more than six months between two meetings, duly called in accordance with the provisions of these regulations and the Act.

(2)

A meeting of the Board may be called by the Member Secretary of the Board by giving fourteen days' notice in writing specifying the place, date and hour, to discuss the agenda for the meeting, with the approval of the Chairman. Such notice accompanied with a copy of the agenda for the meeting shall be despatched to every Member by Speed Post, failing which by Registered Post with acknowledgement:

Provided that any item not included in the agenda may be discussed in a meeting with the permission of the Chairman.

(3)

Non-receipt of the notice of a meeting by anyone or more of the members shall not invalidate the proceedings held at any meeting.

4.

Quorum.

- Eight Members shall form a quorum for a meeting.

5.

Association of persons.

(1)

The Member Secretary of the Board may, with the approval of Chairman, invite for a meeting any person whom the Board may like to associate in such meeting, or whose assistance or advice, in the opinion of the Chairman, the Board may desire, in carrying out the provisions of the Act or the rules:

Provided that the Members shall be informed of the presence of persons so invited, alongwith the nature of assistance or advice required of them.

(2)

A person invited under sub-regulation (1) shall have the right to take part in the discussion relevant to the purpose for

which he is associated in a meeting, but shall not have a right to vote in such meeting.

(3)

A person invited under sub-regulation (1) shall be entitled to receive travelling allowance and daily allowance for attending the meeting at the rates applicable to a Member.

6.

The Board may by resolution passed in meeting constitute one or more sub-committee consisting of Members of the Board for performing certain specified task in such resolution.

7.

The decision at a meeting in a situation of difference of views may be taken by it majority of votes of the Members present and voting, and in the event of an equality of votes, the Chairman and in his absence, the person presiding, shall have and exercise a record or casting vote.

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